

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                       |                                                                     |                           |                                                                                                                                                                                                                       |
|-----------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Jennifer Smith                                                                                       | Team:<br>Squad #14                                                  | CCRB Case #:<br>201709515 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 10/18/2017 12:00 AM,<br>Saturday, 11/11/2017 12:00 AM, Thursday,<br>11/16/2017 4:00 PM | Location of Incident:<br>§ 87(2)(b) ; 33rd<br>Precinct stationhouse | 18 Mo. SOL<br>5/16/2019   | Precinct:<br>33                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Fri, 11/17/2017 9:12 AM                                                                      | CV Reported At:<br>CCRB                                             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 11/17/2017 9:12 AM                                                                                                                                                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s) | Shield | TaxID  | Command |
|--------------------|--------|--------|---------|
| 1. POM Alan Hassel | 21029  | 950571 | 033 PCT |
| 2. POM Ariel Urena | 14116  | 949753 | 033 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. DTS Peter Valentin   | 02708     | 929577 | 033 PCT  |
| 2. SGT Ronnie Rodriguez | 01501     | 947425 | 033 PCT  |
| 3. POM Steven Smith     | 19068     | 959256 | 033 PCT  |
| 4. SGT Jefferson Burgos | 03248     | 948716 | 033 PCT  |

| Officer(s)          | Allegation                                                                                                                                                | Investigator Recommendation |
|---------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Alan Hassel | Abuse: On an unknown date in October 2017, at § 87(2)(b) in Manhattan, Police Officer Alan Hassel questioned § 87(2)(b)                                   | A . Exonerated              |
| B . POM Ariel Urena | Abuse: On an unknown date in October 2017, at § 87(2)(b) in Manhattan, Police Officer Ariel Urena questioned § 87(2)(b)                                   | B . Exonerated              |
| C . POM Alan Hassel | Abuse: On November 16, 2017, at § 87(2)(b) in Manhattan, Police Officer Alan Hassel threatened § 87(2)(b) with the arrest of § 87(2)(b)                   | C . Unsubstantiated         |
| D . POM Ariel Urena | Discourtesy: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Ariel Urena spoke discourteously to § 87(2)(b)                       | D . Unsubstantiated         |
| E . POM Ariel Urena | Abuse: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Ariel Urena refused to provide his name and/or shield number to § 87(2)(b) | E . Unsubstantiated         |
| F . POM Alan Hassel | Abuse: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Alan Hassel refused to provide his name and/or shield number to § 87(2)(b) | F . Unsubstantiated         |

| Officer(s)           | Allegation                                                                                                                 | Investigator Recommendation |
|----------------------|----------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| G . POM Ariel Urena  | Abuse: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Ariel Urena threatened to arrest § 87(2)(b) | G . Unsubstantiated         |
| § 87(4-b) § 87(2)(g) |                                                                                                                            |                             |
| § 87(4-b) § 87(2)(g) |                                                                                                                            |                             |

### Case Summary

On November 17, 2017, § 87(2)(b) called the CCRB and filed this complaint on behalf of her § 87(2)(b) son, § 87(2)(b).

On an unknown date in October 2017, at approximately 3:00 p.m., Police Officer Ariel Urena and Police Officer Alan Hassel of the 33<sup>rd</sup> Precinct allegedly questioned § 87(2)(b) in an unknown deli at the intersection of § 87(2)(b) and § 87(2)(b) in Manhattan (**Allegations A and B: Abuse of Authority, exonerated**). No arrest or summons resulted from this incident.

On November 16, 2017, at approximately 4:00 p.m., PO Urena and PO Hassel approached § 87(2)(b) and his cousin, § 87(2)(b) outside of § 87(2)(b) in Manhattan. PO Hassel allegedly threatened § 87(2)(b) with § 87(2)(b)'s arrest (**Allegation C: Abuse of Authority, unsubstantiated**). § 87(2)(b) was ultimately arrested § 87(2)(a) 160.50 and transported to the 33<sup>rd</sup> Precinct stationhouse. § 87(2)(b) went to the stationhouse, where PO Urena allegedly spoke discourteously toward him (**Allegation D: Discourtesy, unsubstantiated**). PO Urena and PO Hassel allegedly refused to provide their names and shield numbers to § 87(2)(b) (**Allegations E and F: Abuse of Authority, unsubstantiated**), and PO Urena allegedly threatened to arrest § 87(2)(b) (**Allegation G: Abuse of Authority, unsubstantiated**).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(4-b) § 87(2)(g)

There is no video footage regarding the first incident. § 87(2)(b) recorded part of the second incident on his cellphone. This video can be found in IA #34 (22 Board Review), and the summary can be found in IA #45 (23 Board Review). A Snagit copy has been placed below.

### Findings and Recommendations

**Allegation A- Abuse of Authority: On an unknown date in October 2017, at § 87(2)(b) and § 87(2)(b) in Manhattan, Police Officer Ariel Urena questioned § 87(2)(b)**

**Allegation B- Abuse of Authority: On an unknown date in October 2017, at § 87(2)(b) and § 87(2)(b) in Manhattan, Police Officer Alan Hassel questioned § 87(2)(b)**

§ 87(2)(g) it is undisputed that the incident took place in a deli located near the intersection of § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) (01 Board Review) said PO Urena and PO Hassel approached him inside of the deli and immediately asked him where he attended school, where he lived, and if he heard about a shooting that happened in the neighborhood. § 87(2)(b) refused to answer the officers' questions, and the officers ordered § 87(2)(b) to stay inside the deli. The unidentified deli patrons told § 87(2)(b) to walk away from the officers, and § 87(2)(b) ran out of the deli. PO Urena and PO Hassel did not follow him and left the scene. The encounter lasted approximately five or six minutes.

§ 87(2)(b) (02 Board Review) said PO Urena and PO Hassel had called her prior to this incident, identified themselves by name and rank, and asked where § 87(2)(b) lived and what school he attended. The officers said § 87(2)(b) was supposed to "start a program" with the

police department. § 87(2)(b) refused to answer the officers' questions and said § 87(2)(b) § 87(2)(b)

PO Urena (03 Board Review) acknowledged that he and PO Hassel approached § 87(2)(b) § 87(2)(b) in the deli. As Neighborhood Coordination Officers, PO Urena and PO Hassel were assigned by their Patrol Borough to determine where § 87(2)(b) was attending school because § 87(2)(b). Prior to the incident, PO Urena and PO Hassel had attempted to contact § 87(2)(b) but were never successful. PO Urena and PO Hassel had a photograph of § 87(2)(b) and when they drove past the location at random, they observed § 87(2)(b) enter the deli. Inside the deli, PO Urena said to § 87(2)(b) "Listen, you're not in trouble or anything, but our supervisors want us to find out if you're going to school or not. Tell me now so that I can just put it in the documents and I never have to speak to you again." § 87(2)(b) said he was not attending school and then walked out of the deli. The encounter lasted approximately 60 seconds. § 87(2)(b) was free to leave the entire time and PO Urena and PO Hassel never told § 87(2)(b) otherwise.

PO Hassel (04 Board Review) said that he was the only officer to speak to § 87(2)(b). Immediately upon approaching § 87(2)(b), PO Hassel told § 87(2)(b) that he was free to go and that he was not required to speak to the officers. PO Hassel asked § 87(2)(b) if he was living in Washington Heights or the Bronx because PO Hassel had residences listed for § 87(2)(b) in both places. § 87(2)(b) gave PO Hassel "a look" that PO Hassel believed indicated he did not want to speak to the officers, so PO Hassel and PO Urena left the deli.

NYPD Patrol Guide, Procedure 212-11 (05 Board Review) describes a "Level 1 encounter" as one where when an officer has an objective credible reason to approach a civilian, that the refusal to answer questions and/or walking or running away does not escalate the encounter, and that an officer must not create a situation, either by words or actions, where a reasonable person would not feel free to leave.

§ 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED], it is recommended that **Allegations A and B** be *exonerated*.

**Allegation C – Abuse of Authority: On November 16, 2017, at § 87(2)(b) § 87(2)(b) in Manhattan, Police Officer Alan Hassel threatened § 87(2)(b) with the arrest of § 87(2)(b).**

It is undisputed that prior to this incident, § 87(2)(b) and § 87(2)(b) were standing outside of their apartment building and § 87(2)(b) was holding an unlit marijuana cigarette (a "blunt"). § 87(2)(b) said that he and § 87(2)(b) were waiting for an "Uber" to arrive and § 87(2)(b) held the blunt under his sleeve where it was in partial view to the public. PO Urena and PO Hassel approached and asked § 87(2)(b) where he was living, where he was attending school, and what he was doing in his free time. § 87(2)(b) refused to answer the officers' questions. PO Hassel allegedly said, "If you don't tell us your information, we're going to lock him up." § 87(2)(b) told § 87(2)(b) not to answer the officers' questions. The officers handcuffed § 87(2)(b) and arrested him. § 87(2)(b) was not arrested or summonsed.

§ 87(2)(b) (21 Board Review) said over the phone that he did not recall any interaction with § 87(2)(b) and officers' during this incident, and he was ultimately uncooperative with the investigation (see IA's for contact attempts).

PO Hassel said he and PO Urena drove past the apartment building after receiving community complaints of narcotics in that building. PO Hassel observed § 87(2)(b) holding the unlit blunt in his hand, standing outside of the building with § 87(2)(b). PO Hassel approached with PO Urena and smelled marijuana. § 87(2)(b) acknowledged to the officers that he was holding a blunt. PO Hassel ordered § 87(2)(b) to provide his identification and he complied. PO Hassel and PO Urena took § 87(2)(b) into custody. PO Hassel never made any statements to § 87(2)(b) during the encounter, including threatening § 87(2)(b) with the arrest of § 87(2)(b).

PO Urena said that prior to approaching § 87(2)(b) and § 87(2)(b), § 87(2)(b) noticed the officers and subsequently crushed the blunt in his fist and placed it in his pants pocket. When PO Urena and PO Hassel approached, PO Urena smelled marijuana. PO Urena recognized the smell because he has made more than 100 marijuana arrests during his career. When § 87(2)(b) was arrested, § 87(2)(b) asked PO Urena why § 87(2)(b) was under arrest. PO Urena did not explain to § 87(2)(b) why § 87(2)(b) was arrested, but he told § 87(2)(b) that he would be taken to the stationhouse and issued a desk appearance ticket ("DAT"). PO Urena told § 87(2)(b) that that he could wait for § 87(2)(b) at the stationhouse. PO Urena denied ever hearing PO Hassel threaten § 87(2)(b) with § 87(2)(b)'s arrest. During his interview, PO Urena was asked what the procedure was for marijuana arrests. PO Urena said that incidents with marijuana are to be handled at an officer's discretion. § 87(2)(b) was arrested because he crushed the marijuana when he saw officers approach, which constituted criminal tampering with evidence.

§ 87(2)(b)'s arrest report § 87(2)(a) 160.50  
§ 87(2)(b) makes no mention of § 87(2)(b) crushing the blunt upon seeing the officers.

§ 87(2)(g)  
§ 87(2)(b). It is therefore recommended that **Allegation C** be **unsubstantiated**.

**Allegation D- Discourtesy: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Ariel Urena spoke discourteously to § 87(2)(b)**

**Allegation E- Abuse of Authority: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Ariel Urena refused to provide his name and/or shield number to § 87(2)(b)**

**Allegation F- Abuse of Authority: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Alan Hassel refused to provide his name and/or shield number to § 87(2)(b)**

**Allegation G- Abuse of Authority: On November 16, 2017, at the 33rd Precinct stationhouse, Police Officer Ariel Urena threatened to arrest § 87(2)(b)**

§ 87(2)(b) said after § 87(2)(b) was arrested, he immediately walked to the stationhouse with his sister, § 87(2)(b) who did not witness § 87(2)(b)'s arrest. § 87(2)(b) and § 87(2)(b) pretended not to know each other so that § 87(2)(b) could see how the officers treated § 87(2)(b). § 87(2)(b) saw PO Urena and asked why PO Urena and PO Hassel had been harassing him. PO Hassel suddenly appeared and told § 87(2)(b) that he would release § 87(2)(b) if § 87(2)(b).

revealed where he went to school, where he lived, and what he did in his free time. PO Urena allegedly interjected, “Get this little fucking kid out of here.” PO Steven Smith of the 33<sup>rd</sup> Precinct approached and escorted § 87(2)(b) out of the stationhouse.

§ 87(2)(b) waited outside for approximately five minutes, then reentered the stationhouse and asked PO Urena and PO Hassel for their names and shield numbers. PO Urena allegedly replied, “We don’t have fucking names. Get this little mother-fucker out of here.” Neither PO Urena nor PO Hassel provided their names or shield numbers to § 87(2)(b) so § 87(2)(b) told the officers that he would wait outside again, but if they did not provide him with their names and shield numbers within 10 minutes, he would come back into the stationhouse and record them. Approximately 10 minutes later, PO Urena and PO Hassel had not provided their names and shield numbers, so § 87(2)(b) reentered the stationhouse again. PO Urena’s immediate response to § 87(2)(b) reentering the stationhouse was allegedly, “We’re going to lock you up for being inside of the stationhouse.” § 87(2)(b) stepped into the entrance vestibule and recorded the officers through the door with his cellphone before leaving with § 87(2)(b).



2018-07-12\_8-54-19.mp4

§ 87(2)(b)’s recording depicts a blurry view of three officers sitting at the main desk in the stationhouse, and due to the low quality of the video, those officers’ identities cannot be determined. PO Hassel was the only officer who identified himself as being in the video, though he did not recall it being recorded. The video does not capture any FADO allegations.

§ 87(2)(b) provided a brief phone statement (08 Board Review), where she said that the officers harassed § 87(2)(b) at the stationhouse, but she refused to elaborate and subsequently became uncooperative with the investigation (see IAs for contact attempts).

PO Urena denied seeing § 87(2)(b) at the stationhouse following § 87(2)(b)’s arrest, and said that upon returning there following § 87(2)(b)’s arrest, he watched television for approximately four hours in the lounge, located in the basement of the stationhouse. Det. Peter Valentin of that command processed § 87(2)(b)’s arrest. When PO Urena left the stationhouse that evening, Det. Valentin told him that § 87(2)(b) had arrived at the stationhouse and caused a “ruckus.” PO Urena denied ever speaking discourteously to § 87(2)(b) denied refusing to provide his name and shield number to § 87(2)(b) and denied threatening to arrest § 87(2)(b).

PO Hassel said Det. Valentin processed § 87(2)(b)’s arrest as PO Hassel stood near the front desk. PO Urena was not near the front desk. § 87(2)(b) entered the stationhouse and appeared agitated about § 87(2)(b)’s arrest. § 87(2)(b) asked PO Hassel if § 87(2)(b) would be issued a DAT or transported to Central Booking. PO Hassel said he did not know and asked Det. Valentin to answer the question. Det. Valentin told PO Hassel that § 87(2)(b) would be issued a DAT and PO Hassel relayed the information to § 87(2)(b). PO Hassel then walked away to process paperwork elsewhere in the stationhouse and denied witnessing any further interaction between § 87(2)(b) and any officer in the stationhouse.

PO Hassel denied that § 87(2)(b) accused the officers of harassment or asked PO Hassel for his name. PO Hassel denied refusing to provide his name or shield number to § 87(2)(b) and he also denied hearing PO Urena make the alleged discourteous statements to § 87(2)(b) and threatening to arrest § 87(2)(b). PO Hassel said he would have had no reason to refuse to provide § 87(2)(b) with his name or shield number because PO Hassel had already interacted with § 87(2)(b).

§ 87(2)(b) during the incident in October 2017, and PO Hassel had already provided his name to § 87(2)(b) when he called her previously.

Det. Valentin acknowledged (09 Board Review) processing § 87(2)(b)'s arrest, although he had no recollection of this incident and no knowledge of who § 87(2)(b) was. Det. Valentin denied hearing any officer make the alleged discourteous statements, refuse to provide their name and shield number to any civilian, and threaten to arrest any civilian.

Sgt. Ronnie Rodriguez of the 33<sup>rd</sup> Precinct (10 Board Review) acknowledged being the desk sergeant during this incident, but said he had no recollection of it. Sgt. Jefferson Burgos of the 33<sup>rd</sup> Precinct (11 Board Review) was the desk sergeant during the previous tour, but said he also had no recollection of this incident.

PO Smith (12 Board Review) did not recall this incident or anything unusual happening in the stationhouse that day. PO Smith was familiar with § 87(2)(b) and his arrest history because § 87(2)(b) was a "known person" in Washington Heights. However, PO Smith denied witnessing any interactions between § 87(2)(b) PO Urena, and PO Hassel.

§ 87(2)(g)

It is therefore recommended that **Allegations D through G** be **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

#### **Allegations not Pleaded**

- § 87(2)(g) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]
- [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]
- [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) (16 Board Review) and § 87(2)(b) (17 Board Review) have been a party.
- PO Urena has been a member-of-service for eight years and has been a subject in four complaints and six allegations, one of which was substantiated.
  - Case 201308612 involved one substantiated allegation of a retaliatory summons. The Board recommended instructions. The NYPD disposition is unknown.
- PO Hassel has been a member-of-service for seven years and has been a subject in three complaints and three allegations, one of which was substantiated.
  - Case 201202642 involved one substantiated allegation of a frisk. PO Hassel was served with charges and was found not guilty at trial.

## Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- As of May 22, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint (20 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED].

---

Squad No.: 14

Investigator: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_

Squad Leader: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|



Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date